

Court No. - 39

Case :- WRIT - C No. - 27328 of 2023

Petitioner :- M/S Sarasth Propbuild Pvt Ltd

Respondent :- Executive Engineer Electricity And 4 Others

Counsel for Petitioner :- Shiv Bahadur Singh, Indra Bhan Yadav

Counsel for Respondent :- CSC, Pranjal Mehrotra

Hon'ble Saumitra Dayal Singh, J.

Hon'ble Rajendra Kumar-IV, J.

1. List revised. None present for the petitioner to press the petition despite open Video Conferencing platform (webex made available) and despite adequate publication of notice. Learned Standing Counsel is present.

2. In the interest of justice, put up as fresh on 18.10.2023, by way of last opportunity.

3. However, this indulgence is not intended to be granted from tomorrow if the lawyers continue to abstain from work.

Order Date :- 12.9.2023

Faraz

(Rajendra Kumar-IV, J.) (S. D. Singh, J.)

Court No. - 3

Case :- WRIT - C No. - 27328 of 2023

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Respondent :- Executive Engineer Electricity And 4 Others

Counsel for Petitioner :- Shiv Bahadur Singh, Indra Bhan Yadav

Counsel for Respondent :- CSC, Pranjal Mehrotra

Hon'ble Siddhartha Varma, J.

Hon'ble Manoj Bajaj, J.

Sri Pranjal Mehrotra, learned counsel for the Electricity Department states that the order impugned dated 15.06.2023 was based on a bill. He may produce the bill.

Place this case as a fresh case on 8th November, 2023 as fresh.

Order Date :- 18.10.2023

Raj

Court No. - 3

Case :- WRIT - C No. - 27328 of 2023

Petitioner :- M/S Sarasth Propbuild Pvt Ltd

Respondent :- Executive Engineer Electricity And 4 Others

Counsel for Petitioner :- Shiv Bahadur Singh, Indra Bhan Yadav

Counsel for Respondent :- CSC, Pranjal Mehrotra

Hon'ble Siddhartha Varma, J.

Hon'ble Manoj Bajaj, J.

Supplementary affidavit filed today be kept on record.

From page no.84, we find that the electricity consumed for the period from 1.1.2019 to 1.7.2019 was 85237 units. Why this figure of 85237 has been multiplied by 6 is not clear.

Sri Pranjal Mehrotra, learned counsel for Electricity Department may take instructions in the matter.

Put up this case as fresh on 21.11.2023.

Order Date :- 8.11.2023

P.S.Parihar

Court No. - 3

Case :- WRIT - C No. - 27328 of 2023

Petitioner :- M/S Sarasth Propbuild Pvt Ltd

Respondent :- Executive Engineer Electricity And 4 Others

Counsel for Petitioner :- Shiv Bahadur Singh, Indra Bhan Yadav

Counsel for Respondent :- CSC, Pranjal Mehrotra

Hon'ble Siddhartha Varma, J.

Hon'ble Shekhar B. Saraf, J.

Instructions filed today be kept on record.

The contention of learned counsel for the petitioner is that the electricity consumption charges as per the Bill dated 26.6.2023 (Page 84 of the writ petition) is with regard to the entire property. He submits vide paragraph 17 of the writ petition that 263 flat holders have also been charged individually and that the amount, which the individual flat holders were paying to the Electricity Department, has not been deducted from the primary meter of the petitioner, reading of which has been given at page 84 of the writ petition.

Learned counsel for the Electricity Department may seek further instructions in this regard.

List this case on 5th December, 2023 as fresh.

Till the next date of listing, no coercive action shall be taken against the petitioner in case the petitioner pays further amount of Rs.50,00,000/-.

Order Date :- 21.11.2023

Rakesh

Court No. - 3

Case :- WRIT - C No. - 27328 of 2023

Petitioner :- M/S Sarasth Propbuild Pvt Ltd

Respondent :- Executive Engineer Electricity And 4 Others

Counsel for Petitioner :- Shiv Bahadur Singh, Indra Bhan Yadav

Counsel for Respondent :- CSC, Pranjal Mehrotra

Hon'ble Siddhartha Varma, J.

Hon'ble Shekhar B. Saraf, J.

1. Instructions filed by learned counsel for Electricity Department, be kept on record.
2. Heard learned counsel for petitioner, learned counsel for Electricity Department and learned Additional Chief Standing Counsel.
3. The petitioner had taken a temporary electricity connection of 45 KVA on 20.06.2016. Thereafter on 02.06.2017 the load was enhanced to 300 KVA. The petitioner was into building activity and when the construction was completed, the possession of the building was handed over to various buyers. On 04.06.2019 a bill was received by the petitioner of Rs. 3,91,07, 978/-. To this bill the petitioner objected and on 26.06.2020 the bill was reduced to Rs. 2,91,91,336/- However, not satisfied by the reduction, the petitioner had again objected to this demand as well and therefore the bill amount, as per the reading which were available with the electricity department, was reduced to Rs. 2,47,75,915/-. Aggrieved by this bill which was raised and aggrieved by the recovery which was taking place by the recovery certificate dated 07.11.2022, the petitioner approached the writ court, by means of Writ-C No. 4797/2023. It may be mentioned here that when earlier the petitioner had received the electricity bill of this amount on

31.12.2019 the petitioner had approached this Court by means of Writ-C No. 8462/2021. The petitioner had submitted in both writ petitions before the High Court that the bill which was sent was erroneous and therefore it had prayed for a liberty to approach electricity department under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 for the correction of the bill. When the order dated 24.02.2023 was passed in Writ -C No. 4797/2023 the electricity department had provided that the petitioner had to deposit Rs. 2,00,59,590/-before the application under Clause 6.5 of the Electricity Code would be considered. Aggrieved thereof the present writ petition has been filed.

4. Learned counsel for petitioner has vehemently objected to the manner in which this amount had been calculated.

5. Learned counsel for the electricity department however, has submitted that when the billing was being done for the electricity connection no. 3554, which had a meter, then definitely when the dispute was being raised then all questions which the petitioner was raising, would be considered at the time of the disposal of the application under Clause 6.5. He has submitted further that if the petitioner deposits 50% of the amount which was payable under Clause 6.5 b(ii) by the communicated dated 26.06.2023 then petitioner's complaint under Clause 6.5 would be considered.

6. Having considered the rival claims between the parties, we are of the view that since the electricity department had on an earlier occasion agreed to look into the application of the petitioner under Clause 6.5 after he deposited 50% of the amount which was to be deposited under Clause 6.5, we provide a further relief to the petitioner and provide that if the petitioner deposits 40% of the amount which is to be statutorily deposited before the complaint could be considered then the petitioner's application under Clause

6.5 would be considered within a period of two months in accordance with law. We have reduced the deposit from 50% to 40% as the learned counsel for petitioner has informed that after the order dated 24.02.2023 was passed, the petitioner had deposited around Rs. 25lac.

8. In addition to what has been stated here, during the period the complaint would be dealt with the petitioner shall continue to deposit the current bills.

9. It is further directed that no coercive action shall be taken for a period of two months against the petitioner or till the decision is taken under Clause 6.5 of the Electricity Code.

10. With the aforesaid observations, this writ petition is **disposed of**.

Order Date :- 12.12.2023

Sharad/-

(Shekhar B. Saraf, J.) (Siddhartha Varma, J.)

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Hon'ble Siddhartha Varma, J.

Hon'ble Shekhar B. Saraf, J.

Civil Misc. Correction Application No.2 of 2023 :

1. Heard learned counsel for the parties.

2. The application is allowed in the following manner :-

(i) In 7th and 8th line of paragraph 5 of the order dated 12.12.2023, the words "the amount which was payable under Clause 6.5 b(ii) by the communicated dated 26.06.2023" shall stand deleted and shall be substituted by word "**Rs.2,47,75,915/-**".

(ii) Also in the 4th and 5th line of paragraph no.6 of the order, the words "the amount which was to be deposited under Clause 6.5" shall stand deleted and shall be replaced by word "**Rs.2,47,75,915**".

Let this order be part and parcel of the order dated 12.12.2023.

Order Date :- 19.12.2023

GS

(Shekhar B. Saraf, J.)

(Siddhartha Varma, J.)